

# Easement

Version 3.3 released on 6/29/23

PW0121145

**CITY COUNCIL USE ONLY**

Date Received: \_\_\_\_\_  
 Committee Date: \_\_\_\_\_  
 1<sup>st</sup> Agenda Date: \_\_\_\_\_

Tracking #: \_\_\_\_\_  
 Committee: \_\_\_\_\_  
 Hearing Date: \_\_\_\_\_  
 2<sup>nd</sup> Agenda Date: \_\_\_\_\_

**CITY CLERK USE ONLY**

☐ Scanned Date: 03.05.2025  
☐ Posted Item #: 2503.00629

*All department items requiring Council approval must be submitted through the Mayor's Office.***Primary Details****Board Approval****Other Board Name****City Council Approval**☒ Yes ☐ No

**Department**  
 Public Works

**Contact Name**  
 Courtney Jones 26.25

**Email**  
 courtneyjones@cityoftulsa.org

**Phone**  
 918-596-9549

**Easement Type**  
 Sanitary Sewer

**Owner-Grantor**  
 Green Country Salvage, Inc.

**Bid/Project Number**  
 IDP 184725

**Project Title**  
 Hidden Meadows

**Council District**  
 6

**Section**  
 1

**Township**  
 19

**Range**  
 14

**Addition**  
 UNPLATTED

**Lot**

**Block**

**Address**  
 432 S. 193rd E. Ave.

**Parcel Number**  
 673

**Additional Information/Tracking Number**

**Budget****Contract Types**

☒ **No Payments Involved**  
☐ Revenue Contracts  
☐ Expense Contracts

**Funding Source(s)****DONATION:**

**TOTAL:** \$0.00

**Approvals**

**Department:** \_\_\_\_\_  
**Legal:** \_\_\_\_\_  
**Board:** \_\_\_\_\_  
**Mayor:** \_\_\_\_\_  
**Other:** \_\_\_\_\_

**Date:** 2/7/2025  
**Date:** 2-18-25  
**Date:** \_\_\_\_\_  
**Date:** MAR 06 2025  
**Date:** \_\_\_\_\_

**Policy Statement****Background Information**

This Sanitary Sewer easement is being donated by Green Country Salvage, Inc., an Oklahoma Corporation, as a requirement of IDP 184725. This Sanitary Sewer off-site easement is required for infrastructure improvements at Hidden Meadows subdivision.

PDZ: 2025 02.06.25 MSL: 2/6/25 swb

**Summation of the Requested Action**

Mayoral approval and City Council acceptance.

**Other Pertinent Details****Processing Information for City Clerk's Office****Post Execution Processing**

☐ Mail vendor copy (add'l signature copies attached)  
☒ **Must be filed with other governmental entity**  
☐ Add'l governmental entity approval(s) required

**Additional Routing, Processing or Contact Details**

Original to be picked up by Courtney Jones for further processing. (6-9549)

## SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **GREEN COUNTRY SALVAGE, INC., an Oklahoma corporation**, (Grantor) the owner of the legal and equitable title to the following real estate situated in Tulsa County, State of Oklahoma, for and in consideration of the sum of TEN AND NO/100 (\$10.00) DOLLARS cash in hand paid by the CITY OF TULSA, OKLAHOMA, a municipal corporation, (City) and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City, a perpetual easement, through, over, under and across the following described property:

See Exhibit "A"

for the purpose of permitting the City, to construct a sanitary sewer thereon through, over, under, and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for its administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 20 day of December, 2024.

CITY OF TULSA  
OFFICE OF CITY CLERK  
175 East 2<sup>nd</sup> Street – Suite 260  
TULSA, OK 74103

**GREEN COUNTRY SALVAGE, INC.,  
an Oklahoma corporation,**

By: James R. Cloer  
Name: James R. Cloer  
Title: President

STATE OF OKLAHOMA    )  
                                  ) ss.  
COUNTY OF TULSA     )

Before me, the undersigned, a Notary Public, in and for said County and State on this 20 day of December, 2024, personally appeared **James R. Cloer**, known to be the identical person who subscribed the name of **GREEN COUNTRY SALVAGE, INC., an Oklahoma corporation**, to the foregoing as its President and acknowledged to me that he executed the same as his free and voluntary act and deed and as the free and voluntary act and deed of **GREEN COUNTRY SALVAGE, INC., an Oklahoma corporation**, for the uses and purposes therein set forth.

Given under my hand and seal of office the day and year last above written.

My commission expires:  
09-24-2028

Loralei Manley  
Notary Public



**APPROVED AS TO FORM:**

  
Asst. City Attorney

**APPROVED AS TO SUBSTANCE:**

  
Director

**ACCEPTED BY CITY COUNCIL:**

Date: \_\_\_\_\_

BY: \_\_\_\_\_

Name: Phil Lakin, Jr.

Title: Chair

**APPROVED BY MAYOR:**

CITY OF TULSA, OKLAHOMA,  
a municipal corporation

Date: \_\_\_\_\_

BY: \_\_\_\_\_

Name: Monroe Nichols IV

Title: Mayor

**ATTEST:**

\_\_\_\_\_  
City Clerk

STATE OF OKLAHOMA     )  
                                                      ) ss.  
COUNTY OF TULSA        )

Before me, a Notary Public in and for said County and State, on the \_\_\_\_\_ day of \_\_\_\_\_, 2025, personally appeared Phil Lakin, Jr., to me known to be the identical person who accepted the within and foregoing instrument as Chair of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

\_\_\_\_\_  
Notary Public

My commission expires:

\_\_\_\_\_

STATE OF OKLAHOMA     )  
                                                      ) ss.  
COUNTY OF TULSA        )

Before me, a Notary Public in and for said County and State, on the \_\_\_\_\_ day of \_\_\_\_\_, 2025, personally appeared Monroe Nichols IV, to me known to be the identical person who approved the within and foregoing instrument as Mayor of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

\_\_\_\_\_  
Notary Public

My commission expires:

\_\_\_\_\_

# Sanitary Sewer Easement

## Exhibit "A"

SHEET 1 OF 2

### LEGAL DESCRIPTION

A TRACT OF LAND LYING IN THE SOUTHEAST QUARTER (SE/4) OF SECTION ONE (1), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN (I.B.&M.) CITY OF TULSA, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE U.S. GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS; TO-WIT:

COMMENCING (P.O.C.) AT THE NORTHEAST CORNER OF THE SOUTHEAST QUARTER (SE/4) OF SAID SECTION ONE (1); THENCE S88°24'36"W FOR A DISTANCE OF 949.34 FEET TO THE **POINT OF BEGINNING** (P.O.B.); THENCE S01°35'13"E FOR A DISTANCE OF 330.15 FEET; THENCE S88°24'47"W FOR A DISTANCE OF 20.00 FEET; THENCE N01°35'13"W FOR A DISTANCE OF 330.15 FEET; THENCE N88°24'36"E FOR A DISTANCE OF 20.00 FEET TO THE **POINT OF BEGINNING** (P.O.B.); SAID TRACT CONTAINING 0.64 ACRES MORE OR LESS.

### BASIS OF BEARINGS

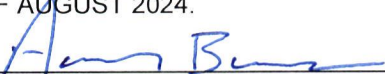
BASIS OF BEARINGS FOR THIS EXHIBIT IS THE OKLAHOMA STATE PLANE COORDINATE SYSTEM (NAD83 OKLAHOMA NORTH ZONE 3501).

### SURVEYOR'S CERTIFICATE

I, AARON BURNS, OF WALLACE DESIGN COLLECTIVE, PC, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORDANCE WITH THE EXISTING REQUIREMENTS AND IS A TRUE REPRESENTATION OF THE LEGAL DESCRIPTION AS DESCRIBED. THIS LEGAL DESCRIPTION MEETS THE MINIMUM STANDARDS FOR LEGAL DESCRIPTIONS AS ADOPTED BY THE OKLAHOMA STATE BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS FOR THE STATE OF OKLAHOMA.

WITNESS MY HAND AND SEAL THIS 29TH DAY OF AUGUST 2024.



  
AARON BURNS, P.L.S.  
OKLAHOMA NO. 1923  
CERT. OF AUTH. NO. 1460  
EXP. DATE JUNE 30, 2025

SURVEYOR'S LAST SITE VISIT JANUARY 4, 2024



wallace  
design  
collective

wallace design collective, pc  
structural · civil · landscape · survey  
123 north martin luther king jr. boulevard  
tulsa, oklahoma 74103  
918.584.5858 · 800.364.5858  
wallace.design

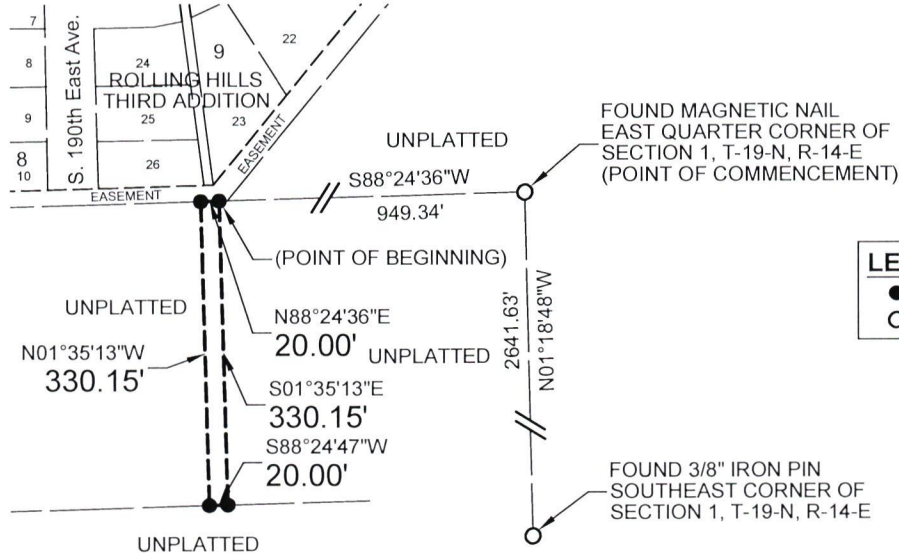
ORIG SIZE: 8.5"X11"  
PLOT: 8/29/2024 4:06:40 PM  
\\Civil-Server\Projects\2340494 Hensley Subdivision - Tulsa\Drawings\Exhibits\2340494 LG-1A.dwg

# Plat of Survey Sanitary Sewer Easement Exhibit "A"

JBH

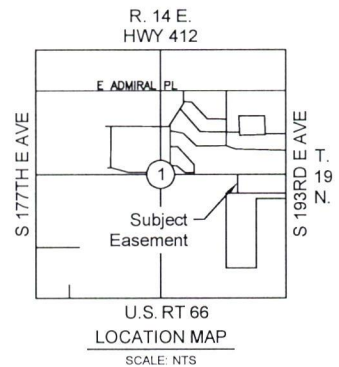
SHEET 2 OF 2

A PART OF THE SE/4 OF SEC. 1, T.19 N., R.14 E., I.B. & M., CITY  
OF TULSA, TULSA COUNTY, OKLAHOMA



## LEGEND

- = SET 3/8" IRON PIN
- = FOUND SURVEY MONUMENT



## BASIS OF BEARINGS

THE BASIS OF BEARING FOR THIS SURVEY IS THE OKLAHOMA STATE PLANE  
COORDINATE SYSTEM (NAD83 OKLAHOMA NORTH ZONE 3501).

## SURVEYOR'S LAST SITE VISIT:

JANUARY 4, 2024

## CERTIFICATION

I, AARON BURNS, HEREBY CERTIFY THAT THE ABOVE REPRESENTS A SURVEY PERFORMED UNDER MY DIRECT  
SUPERVISION AND IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF AS OF THIS DATE. THIS PLAT OF  
SURVEY MEETS THE MINIMUM TECHNICAL STANDARDS, AS ADOPTED BY THE BOARD OF REGISTRATION FOR  
PROFESSIONAL ENGINEERS AND LAND SURVEYORS FOR THE STATE OF OKLAHOMA.

WITNESS MY HAND AND SEAL THIS 29TH DAY OF AUGUST 2024.



*Aaron Burns*  
AARON BURNS P.L.S.  
OKLAHOMA NO. 1923  
CERT. OF AUTH. NO. 1460  
EXP. DATE JUNE 30, 2025



wallace  
design  
collective

wallace design collective, pc  
structural · civil · landscape · survey  
123 north martin luther king jr. blvd.  
tulsa, oklahoma 74103  
918.584.5858 · 800.364.5858  
wallace.design

EXHIBIT "A"